

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 28, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Ms. Broyles. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Allen and Mr. Cook, Agenda Item #18 was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Allen and Mr. Cook, Agenda Item #24(a) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 14, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Dr. Rinne moved to approve payment of vouchers as presented, seconded by Mr. Luna. Comment followed regarding a voucher payable to TruGreen Commercial, contract services for grounds aeration/seed work, due to labor shortage. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Public hearing to receive public comments regarding whether the Mayor and the City Clerk of the City of Cheyenne should be authorized to file an application for grant and/or loan funds under the Wyoming Business Council Business Ready Community Grant and Loan Program for funding for the construction of a rail spur within the Swan Ranch Industrial Park, located generally west of Interstate 25 and south of Interstate 80, Cheyenne, Laramie County, Wyoming. Mayor Kaysen noted that Agenda Item #21 (Resolution regarding the grant application) is related to the public hearing topic and is being recommended (by Finance Committee) for postponement. Due to the anticipated postponement of the resolution, Mayor Kaysen queried whether there was any objection by City Council members to reschedule the public hearing to Tuesday, November 12, 2013 at 6:00 p.m. There being no objection raised, Mayor Kaysen announced the hearing was being cancelled and would be rescheduled for November 12th, and noted an announcement of the rescheduled hearing was included on the

meeting agenda (Agenda Item #28 (d)).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to MR-2 Medium Density Residential - Developing for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and Ridge Roads) (Postponed from October 14, 2013). Brett Walker, Development Office, advised pursuant to a protest petition that had been filed opposing the zone change, it had been determined the petition met Wyoming Statute §15-1-603 requirements that at least 20% of eligible property owners (within the boundary area) had signed the petition, therefore, approval of the ordinance would require an affirmative vote by at least 3/4ths of all members of the governing body. Roger Alexander, Tom Hood, John Nichols, Shelley Hood, Elisa Sanders, Kyle Lovell and Debbie Hall, residents in the vicinity, spoke in opposition to the proposed zone change. Comments included the following topics: Developer's offer to sell the property to the neighbors; proposed construction of multi-family residential units in a predominantly single residential home environment; property values; quality of life concerns involving potential increase in noise, traffic, safety, density and crime; renters not having a property investment in the neighborhood, and number of multi-residential (apartment) units already in existence in the area. J. Volk, local real estate agent, advised of the community's need for mid-range rental units and his belief that the proposed zone change is applicable for current times relative to progressive growth and development of the City. Boyd Wiggam, Wyoming Liberty Group, commented on difficulty in finding rental properties in the community; applicable zoning for the property and recommended zoning for the area contained in PlanCheyenne, and property rights and equal protection for the owner of the property proposed to be re-zoned. Casey Palma, Steil Surveying Services, agent for applicant, Leaning Tree Homes, advised the applicant is a locally-owned company and discussed meetings that have been held with the neighborhood to listen to concerns and developer's willingness to continue to listen to residents during the development project. Mr. Palma commented on criteria contained in PlanCheyenne and the Unified Development Code (UDC) and meeting compliance with codes, and that access into the proposed development would be off Storey Blvd., noting a proposed lay-out of the development is available. Donn Edmunds commented on what is the appropriate area to place apartments in Cheyenne. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Discussion topics included: Comments in support as well as non-support of the requested zone change; appropriate locations for multi-plex residential units; developer working with residents on issues of concern; best interests of the community; the UDC; focusing on agenda item topic of re-zoning and not the specific type of development for the property, which will involve a plat and possible variance by the Board of Adjustment; disapproval of a past zone change request involving property off Yellowstone Road; whether the proposed zone change is appropriate for the property owner's intended use, and uses by right allowed under a MR-2 zone classification. Upon inquiry, Mr. Walker provided general information regarding density allowed per the lot size, noting setback and frontage requirements would be reviewed; potential variance required by the Board of Adjustment, and site plan review process. Motion failed (City Clerk note: Pursuant to the protest petition and state statute provision, minimum of eight affirmative votes required for final passage). Voting "yes" -- Mr.

Allen, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Voting “no” – Mr. Brown, Mr. Cook, Mr. Luna and Dr. Rinne.

ORDINANCE - Pursuant to Sections 1.1.6 & 2.4.1 of the Cheyenne Unified Development Code, Repealing and Re-enacting Unified Development Code Section 2.4.2, Annexations. Mr. Allen moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body present. (#4001)

ORDINANCE - Repealing Chapter 13.20, Wastewater and Disposal, in its entirety and re-creating Chapter 13.20, Wastewater Treatment and Disposal, of Title 13, Public Services, of the City of Cheyenne City Code. Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body present. (#4002)

ORDINANCE - Amending Section 9.16.070(A), sale of tobacco to persons under the age of eighteen years prohibited, of Chapter 9.16, Offenses by or against minors, of Chapter 9, Public Peace and Welfare, of the Cheyenne City Code, pertaining to electronic cigarettes. Officer John Gay, Cheyenne Police Department, provided information, pursuant to comments made at the last meeting, on the ability to enforce the ordinance based on nicotine information contained on e-cigarette cartridges, and commented that enforcement options for violators may include use of diversion programs, such as community service. Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Upon inquiry, Officer Gay confirmed sales of an e-cigarette itself to minors, under the ordinance, would not be prohibited, but any affiliated cartridge containing nicotine fluid would make it illegal, and stated the definition of tobacco contained in the ordinance matches the definition in state law. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Allen, Mr. Cook and Mr. Luna voting “no”. (#4003)

ORDINANCE - Amending, creating, deleting and re-creating various chapters and Sections within Title 8, Health and Safety, of the Cheyenne City Code relating to general provisions pertaining to Fire Protection and Regulations, and adoption of the International Fire Code, 2012 Edition, and certain codes and practices promulgated by the National Fire Protection Association. Mr. Shanor declared a conflict of interest (property business interest) and vacated Council Chambers. Chief James Martin, Fire and Rescue Department, spoke in support of a proposed substitute ordinance; stated his belief the ordinance meets the state’s intent that codes can not be less restrictive than those adopted by the state, and read a statement of support for the ordinance he had received from the Director of Planning Services, who oversees the City’s Building Department. Glen Garrett, local architect and downtown property owner, advised he and other downtown property owners assisted the Downtown Development Authority with funding to hire a code consultant to review and discuss concerns regarding the proposed updated code version. Mr. Garrett’s comments included the following topics of concern: Retroactive enforcement and potential effect on owners of historic buildings; uncertainty of the meaning of the phrases “distinct hazard(s)” and buildings “not legally in existence at the time of adoption of this code”; interpretation and enforcement issues affiliated with both Building and Fire codes; recent adoption of updated building codes, and State Fire Marshall’s role involving code versions

and compliance with the state's adopted version. He explained reasons why he felt concurrence of code interpretations (i.e. Building Codes and Fire Codes) between designated Fire and Building staff was needed, and suggested the structure and processes of the Building Code Board of Appeals and Fire Code Board of Appeals be reviewed. Mr. Allen reported there was no recommendation on the item from Public Services Committee. Mr. Allen moved to approve on third and final reading, seconded by Mr. Cook. Mr. Allen moved to amend by substitute, seconded by Mr. Luna. It was advised the substitute amends ordinance Section 8.12.030 by inserting new wording for section B., amending Section 102.1 of the International Fire Code (IFC), by adding subsection 5 that will read: "In making a determination whether a particular structure, facility or condition constitutes a distinct hazard, the fire code official shall follow the guidelines and procedures specified for Section 102.1.4 which appear on page 1-8 of the official commentary to the 2012 Edition of the International Fire Code." Mr. Garrett stated the official commentary information is "obscure" and not easily available to the public, expressing that the commentary may contain subjective language, and questioned whether the page reference meant pages 1 through 8 or a single page numbered 1-8. Upon inquiry, Mark Norford, Chief of Prevention, Fire and Rescue Department, clarified page 1-8 referenced in the proposed amendment means page 1 "dash" 8 (single page) and that a copy of the page will be provided to the City Clerk's office. Mr. Norford noted correspondence dated October 24, 2013 (on file with City Clerk's office) that he had submitted to members of the governing body that included the commentary wording pertaining to Item 4 of Section 102.1, as contained on page 1-8, and read the commentary wording. Comment followed in support of the proposed substitute. Motion to amend carried. Voting "yes" -- all members of the governing body present in Council Chambers. Discussion topics included the phrase buildings "not legally in existence"; current buildings under construction; building codes vs. fire codes, and concern with removing the retroactivity wording that is included in current code. During discussion and upon inquiry, Mr. Norford provided information regarding current buildings under construction, which will be inspected under current existing code, and historic buildings relative to being legally in existence, and advised building and fire codes are designed to work together and neither code can waive requirements of the other. Mr. Allen moved to amend, seconded by Mr. Cook, ordinance Section 8.12.030 (B), amending Section 102.1 of the IFC, by inserting the following subsection: 4. Existing structures, facilities and conditions which, in the opinion of the fire code official, and with concurrence of the chief building official or his designee, constitute a distinct hazard to life or property. Upon request, Carol Intlekofer, City Clerk, reiterated the wording of the proposed amendment. Mr. Norford advised the department believes the proposed amendment would be less restrictive than the code adopted by the state and could create a situation which, if concurrence was not reached, could allow a distinct hazard to remain in place, which may increase a hazard to the public. He noted the ordinance proposed by the Fire Department was vetted through the building official and had been agreed upon by both Fire and Building departments. Speaking in support of the amendment were Bob Clary and Mr. Garrett, noting it would provide concurrence through cooperative efforts between the two departments. Mr. Norford noted there is a specific appeals process available to the public to redress any code interpretation concerns which involves both a Building Code Board of Appeals and a Fire Code Board of Appeals, and, with regard to the proposed amendment, there are many potential distinct hazards that may need to be addressed through consultation with other individuals that fall outside of the chief building official's authority or expertise. Upon request, Ms. Intlekofer read the wording of the proposed amendment on the floor. Upon request for clarification, Mr. Norford confirmed his previous statement that it was the opinion of Fire Department staff that the proposed amendment could cause a situation that would be less restrictive than the code version

adopted by the state. Motion to amend failed (tie vote). Voting “yes” – Mr. Allen, Mr. Cook, Mr. Luna and Ms. Williams. Voting “no” – Mr. Brown, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Main motion as amended failed (City Clerk note: Ordinance on final reading requires minimum affirmative vote (6 votes) of all members of the governing body to pass). Voting “yes” -- Mr. Allen, Mr. Brown, Mr. Luna, Dr. Rinne and Mayor Kaysen. Voting “no” – Mr. Cook, Mr. Valdez and Ms. Williams. Following announcement of the vote, Mr. Shanor returned to Council Chambers. Under other business later in the meeting, Mr. Cook, who had voted on the prevailing side on the motion to approve on final reading as amended, moved to reconsider the vote on the ordinance (Agenda Item #12), seconded by Mr. Allen. Mr. Shanor declared a conflict of interest (property business interest) and vacated Council Chambers. Upon request, Ms. Intlekofer reviewed criteria involving a motion to reconsider and read the entitlement of the ordinance proposed to be reconsidered into the record. Motion to reconsider carried. Voting “yes” – all members of the governing body present in Council Chambers. Following comment that it has been the practice of City Council in the past that when an item has been brought up and approved for reconsideration under other business the item has been postponed to allow for public awareness of the action, Dr. Rinne moved to postpone the item to November 12, 2013, seconded by Mr. Valdez. Motion to postpone carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Ms. Williams voting “no”. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:20 p.m.

ORDINANCE - Amending various sections contained in Chapters 8.20, 8.24, 8.28 and 8.32 within Title 8, Health and Safety, of the Cheyenne City Code relating to General Provisions pertaining to Fire Protection and Regulations. Mr. Allen moved to approve on third and final reading, seconded by Dr. Rinne. Dr. Rinne moved to postpone to November 12, 2013, seconded by Mr. Valdez. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Amending Chapter 2.32, Fire Department, Section 2.32.020, Department Personnel, and Chapter 2.84, Miscellaneous Boards and Commissions, Section 2.84.050, International Fire Code Board of Appeals, of Title 2, Administration and Personnel, of the Cheyenne City Code pertaining to the Fire and Rescue Department. Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Mr. Allen moved to postpone to November 12, 2013, seconded by Dr. Rinne. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as Election and Ideological Sign Amendments from 2013 Annual Review -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5532)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a final plat and development agreement for Terre Pont Subdivision, a portion of the S1/2 of Section 20, T.14N.,

R.66W., 6th P.M., Cheyenne, Wyoming (located at the northeast corner of the intersection of Prairie Avenue and Frontier Mall Drive). Brandon Cammarata, Planning and Development Director, advised the applicant has requested postponement of the item to further review language in the proposed development agreement. Mr. Allen moved to adopt with staff recommendation #1, seconded by Ms. Williams. Mr. Allen moved to postpone to November 12, 2013, seconded by Dr. Rinne. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

RESOLUTION - Requiring the officers described in Section 2.08.010(A) of the Cheyenne City Code, other than fire chief, to submit departmental estimates of all proposed expenditures at least five months prior to the expiration of any budget approved pursuant to W.S. §16-4-111. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Luna. Mr. Shanor moved to amend, seconded by Mr. Allen, as follows: (1) Change phrase contained in entitlement language from "... to submit departmental estimates of all proposed expenditures ..." to read "... to submit a narrative of the anticipated budget, strategic goals and objectives and departmental priorities for the upcoming fiscal year ..."; (2) Change phrase contained in the 5th Whereas clause from "... benefit from receiving individual departmental estimates of all proposed expenditures ..." to read "... benefit from receiving a narrative of the departmental goals and objectives ..."; (3) Change phrase contained in the 6th Whereas clause from "... the receipt of individual departmental estimates of all proposed expenditures ..." to read "... the receipt of the narrative described above ..."; (4) Striking the first Now, therefore, be it resolved clause and replacing in its entirety with the following: "Now, therefore, be it resolved by the Governing Body of the City of Cheyenne, Wyoming, that each officer described in Section 2.08.010(A) of the Cheyenne City Code, other than the fire chief, shall submit their narrative of the anticipated budget, strategic goals and objectives, and department priorities for the upcoming fiscal year.", and (5) Striking in its entirety the last resolved clause which begins with "... Be it further resolved that each departmental estimate ...". Comment followed that the intent of the amendment is to give Council members a snapshot of where department heads are in the budget process in February and provide more transparency. Mr. Brown offered a friendly amendment to the proposed wording change to the Now, therefore, be it resolved clause (re: (4) above) to include the following words at the end of the sentence "... to the City Council". Mr. Shanor, as maker of the motion to amend, concurred with inclusion of the friendly amendment wording in his motion. Mr. Allen raised a point of order concerning clarification of the friendly amendment relative to the status of the initial motion to amend, and, following verification, voiced his concurrence, as the second to the motion to amend, with inclusion of the friendly amendment wording. Upon query and there being no objection raised by City Council members, Mayor Kaysen questioned whether there needed to be a specified time frame for submission to the City Council relative to wording, including the friendly amendment, to be contained in the "Now, therefore, be it resolved" clause. Mr. Shanor verified the time frame outlined in the resolution indicating "at least five (5) months prior to the expiration of any budget approved pursuant to W.S. § 16-4-111" would apply. Motion to amend, including the friendly amendment wording, carried. Voting "yes" -- all members of the governing body present. Comment was voiced as to the necessity of the resolution. Main motion, as amended, carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Brown and Mayor Kaysen voting "no". (#5533)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an agreement for the trade of real property owned by the City of Cheyenne being a parcel of land located generally east of Missile Drive and south of the right-of-way of West 22nd Street, Cheyenne, Wyoming, to Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden, in exchange for certain real property generally located east of Missile Drive and north of the right-of-way of West 22nd Street, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5534)

RESOLUTION - Acknowledging receipt of 'The City of Cheyenne, Wyoming, Compensation and Classification Study, Final Report,' dated October 1, 2013, prepared by the Mercer Group, Inc., and referring said study to the 'Employee Investment Study Implementation Team' created by Resolution No. 5508." Dr. Rinne reported the Committee of the Whole recommendation was to adopt the resolution with new language "Acknowledging receipt" (replacing the previous wording of "Approving") and moved to so adopt, seconded by Mr. Allen. Mr. Shanor moved to amend the last paragraph that begins with "Be it further resolved ..." by adding the words "all or some of" to be contained in the following phrase "... a plan containing alternative means of implementing *all or some of* the recommendations of said study ...", and to change the date contained in the paragraph from January 1, 2014 to February 1, 2014, seconded by Mr. Luna. Comment followed on the intent of the amendment, which is to provide the team with more direction and allow more time for the team to provide its recommendations. Motion to amend carried. Voting "yes" -- all members of the governing body present. Carol Intlekofer, City Clerk, expressed her belief that the entitlement as listed on the agenda was incorrect and should instead read a "Resolution Approving ..." to match the document as initially submitted on the October 14th agenda. Ms. Intlekofer explained the approved recommendation action at the Committee of the Whole meeting involved an amendment by substitute that changed the word "approving" to "acknowledging receipt of", and offered suggestion that perhaps a motion to amend by substitute may be in order. Dr. Rinne confirmed the recommending action taken at the Committee meeting was to adopt the resolution as amended by substitute which replaced the original language "approving" with "acknowledging receipt of" and also corrected some clerical errors, and moved to amend by substitute. Ms. Intlekofer requested verification as to the correct version of the substitute, referencing the attorney's stamp date of October 23, 2013, and it was confirmed the substitute resolution was the document that was acted upon at the Committee meeting. Mr. Allen raised a point of order inquiring whether there was a main motion on the floor with Mayor Kaysen advising there was a motion on the floor to amend by substitute (City Clerk note: Motion to amend by substitute was made, however, no second to the motion was received.) Procedural discussion followed regarding the substitute resolution, intent of the main motion made by Dr. Rinne to adopt pursuant to recommending action taken at the Committee meeting which included changing the language of "approving" to "acknowledging receipt of" (and providing for clerical corrections), and relationship of the substitute to Mr. Shanor's motion to amend that had been approved. Upon inquiry, Dan White, City Attorney, advised procedurally the substitute resolution should have been approved prior to the motion to amend (i.e. Mr. Shanor's motion), and expressed that approval of the substitute will not alter the changes in the first approved amendment (i.e. Mr. Shanor's motion). It was confirmed the agenda wording for the item was incorrect and, as no dissent was voiced, that all of the members of the governing body present were aware of and in agreement that the main motion to adopt, as explained by Dr. Rinne regarding the Committee's recommendation, pertained to the resolution as amended and recommended at the Committee of the Whole meeting. Upon inquiry and with no objection

raised by those City Council members present, Mayor Kaysen stated the main motion on the floor was to adopt the resolution which has the language of “acknowledging receipt of” and which incorporates Mr. Shanor’s amendment. Motion carried. Voting “yes” -- all members of the governing body present. (#5535)

RESOLUTION - Authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding for the construction of a rail spur within the Swan Ranch Industrial Park. Mr. Brown moved to adopt, seconded by Mr. Luna. Mr. Brown moved to postpone to November 12, 2013, seconded by Mr. Shanor. It was advised postponement is to allow time for an agreement with Granite Peak to be completed. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

[CA] RESOLUTION - Authorizing the submittal of an Application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Clean Water State Revolving fund for an amount not to exceed \$1.3 million for engineering costs for the Phase One Southern Sewer Interceptor Main Project and Authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to execute the application and all related loan documents -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the City of Cheyenne, Wyoming to finance Specific Purpose Sales and Use Tax Election projects including but not limited to the costs of the planning, construction, furnishing, equipping, and acquiring materials for improvement of land, including the Public Safety Center and the payment of lease service payments and the costs of the financed project, and related thereto authorizing the execution and delivery of a Purchase Agreement, as seller, with U.S. Bank National Association, as buyer, and a lease with option to purchase, as lessee, with U.S. Bank National Association, as lessor, with respect to the sale and lease of certain real property as part of a financing arrangement and ratifying, approving and confirming previous actions of officers and members of the Governing Body of the City and employees thereof -- referred to Finance Committee (sponsor -- Mr. Brown).

Memorandum of Understanding between the City of Cheyenne and the Friends of the Cheyenne Botanic Garden, a non-profit corporation, regarding future gifts which may be made by the Foundation to the City (Postponed from October 14, 2013). Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Shanor, seconded by Mr. Allen, moved to amend by adding a final sentence to Section Three, Naming Rights, which would read: “The Executive Committee shall meet pursuant to the requirements set forth in the Wyoming Public Meetings Act, W.S. § 16-4-401 through W.S. § 16-4-408.”. Rick Parish, Parks and Recreation Director, referenced his comments on the item made at the last Finance Committee meeting and questioned whether the amendment would put public scrutiny on a donor(s), which may be a concern relative to the purpose of the MOU, and whether the public records act applies to the Foundation. Discussion comments included the intent of not putting potential donors through a “gauntlet”; members of the public who may wish to attend Foundation meetings; clarification that the amendment would only apply to the Executive Committee; purpose of amendment to provide transparency, and support for Foundation’s efforts in supporting the Botanic Garden. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#6077)

[CA] Agreement between the City of Cheyenne, Transit Division, and Wyoming Department of Transportation for Wyoming Rural Public Transit Program Fiscal Year 2014 (Non-Urbanized Area Formula Grants). Motion (per Consent Agenda) carried. (#6078)

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County, Wyoming, for reimbursement of dual-commissioned Juvenile Diversion Officer's salary (revenue to City). Motion (per Consent Agenda) carried. (#6079)

[CA] Master Agreement for Metropolitan Transportation Planning between the Wyoming Department of Transportation, Federal Highway Administration, and the Cheyenne Metropolitan Planning Organization. Motion (per Consent Agenda) carried. (#6080)

[CA] Contract Agent and Fiscal Manager Addendum to Master Agreement for the Cheyenne Metropolitan Planning Organization between the City of Cheyenne, Laramie County, Federal Highway Administration, Federal Transit Administration and the Wyoming Department of Transportation. Motion (per Consent Agenda) carried. (#6081)

[CA] Memorandum of Understanding - Funding Distribution for Metropolitan Transportation Planning between the Wyoming Department of Transportation and the Casper and Cheyenne Metropolitan Planning Organizations (2011 - 2014 1% Sales Tax, Federal funds). Motion (per Consent Agenda) carried. (#6082)

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and The Design Studio, Inc., for construction contract administration for the renovation and expansion of the existing conservatory/greenhouse at the Cheyenne Botanic Gardens (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$775,000.00). (#6083)

[CA] Grant Award for United States Department of Homeland Security reimbursing the City of Cheyenne for expenditures for security cameras. Motion (per Consent Agenda) carried. (#6084)

[CA] Land and Building Lease Agreement between the City of Cheyenne and Verizon Wireless (VAW) LLC d/b/a Verizon Wireless, for the property located at 4500 Dell Range Boulevard, Cheyenne, Wyoming, for antenna space, exterior space, ingress right-of-way, cabling space, and utilities right-of-way. Motion (per Consent Agenda) carried. (#6085)

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority, to provide services as described in the Older Americans Act of 1965, as amended. Motion (per Consent Agenda) carried (amount not to exceed \$45,000.00). (#6086)

[CA] Contract between the City of Cheyenne and Peak Wellness Center, Inc., Alcohol Receiving Center, to provide social, non-medical alcohol and drug detoxification services. Motion (per Consent Agenda) carried (amount not to exceed \$84,955.00). (#6087)

[CA] Grant Agreement between the City of Cheyenne, Police Department, and the State of Wyoming Department of Transportation, Highway Safety Program for mobile impaired

command post with accessories -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Engineering Department, and Kaiser-Frontier Midstream, an Oklahoma LLC, to permit limited use of the public right-of-way for the installation of a natural gas pipeline and setting a fee -- referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 4173 between the City of Cheyenne, Cheyenne Police Department, and New World Systems Corporation, to upgrade software and hardware law enforcement computer system from an IBM/AS400 platform to a Microsoft platform. Motion (per Consent Agenda) carried (amount not to exceed \$185,770.00). (#4173)

[CA] Amendment No. 2 to Contract No. 5781 between the City of Cheyenne and Ayres Associates for the addition of strategic grant writing services and associated preliminary engineering design required by grants to enable securing of additional grant funding for the Cheyenne West Edge (Lower Capital Basin) Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$69,479.00). (#5781)

Consideration of Bid #R-5-14 for furnishing one new mobile command unit for the City of Cheyenne, Police Department (Law Enforcement Grants). Mr. Brown moved to accept the bid from LDV, Burlington, WI, in an amount not to exceed \$177,662.00, seconded by Mr. Allen. Mr. Brown moved to postpone to November 12, 2013, seconded by Mr. Allen. It was noted postponement will allow for approval of the required contract to accept grant funding, which was introduced on the current agenda (Agenda Item #241). Motion to postpone carried. Voting "yes" -- all members of the governing body present.

[CA] Consideration of Bid #R-7-14 for furnishing an air compressor for Parks and Recreation Department, Grounds & Facilities Division. Motion (per Consent Agenda) carried (accept bid submitted by 4 Rivers Equipment, Cheyenne, in an amount not to exceed \$43,550.00).

[CA] Consideration of Bid #R-6-14 for furnishing one new vacuum truck for the City of Cheyenne, Public Works Department, Street and Alley Division (2011 -2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid submitted by Peterbilt of Wyoming, Cheyenne, in an amount not to exceed \$343,298.00).

[CA] Consideration of Bid #M-7-14 for constructing a wood structure, metal siding building, for the City of Cheyenne, Parks and Recreation Department, Forestry Division (2011 -2014 1% Sales Tax). Motion (per Consent Agenda) carried (reject all bids).

[CA] Consideration of Bid #R-1-14 for the sale of surplus property described as the South 75 ft. of Lots 7 and 8, Block 229, Original City of Cheyenne, Laramie County, Wyoming (a/k/a 2100 Pioneer Avenue) -- referred to Finance Committee.

Re-appointment of Earl B. Kincheloe to the Cheyenne Housing Authority Board. Mr. Brown moved to approve, seconded by Mr. Luna. In response to inquiry, Mayor Kaysen advised applicant forms for Mayoral appointees to boards and commissions are being revised and agenda backup information will be provided in the future. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral

appointment).

Announcement was made that due to the Veterans Day Holiday on Monday, November 11, 2013, the regularly scheduled meeting of the Governing Body will instead be held on Tuesday, November 12, 2013 beginning at 6:00 p.m. in City Council Chambers, Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held Tuesday, November 12, 2013, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the Northwest Quarter of Section 13, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming to be known as the CST Annexation (located at the northwest corner of the intersection of West College Drive and Southwest Drive).

Announcement was made of a Public Hearing to be held Tuesday, November 12, 2013, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the Northeast Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming to be known as the Koritnik Annexation (located at 3904 Whitney Road approximately 200 feet west of the northwest corner of the intersection of Whitney Road and Countryside Avenue).

Announcement was made of a Public Hearing to be held November 12, 2013, at 6:00 p.m., in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to hear public comments regarding whether the Mayor and the City Clerk of the City of Cheyenne should be authorized to file an application for grant and/or loan funds under the Wyoming Business Council Business Ready Community Grant and Loan Program for funding for the construction of a rail spur within the Swan Ranch Industrial Park, located generally west of Interstate 25 and south of Interstate 80, Cheyenne, Laramie County, Wyoming.

Under other business, motion to reconsider Agenda Item #12 carried - refer to minutes section above (re: Ordinance pertaining to Title 8 of City Code regarding proposed International Fire Code, 2012 Edition, adoption, etc.).

There being no further business to come before the governing body, the meeting was officially adjourned at 9:06 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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